

24STCV16071 24STCV16071

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV16071 Hearing Date: August 10, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

ALEXIS

MAXWELL,

Plaintiff,

vs.

650

S. SPRING OWNER LLC, et al.,

Defendants.

Case No.:

24STCV16071

Hearing

Date:

August 10,

2026

ORDER

OVERRULLING DEMURRER TO COMPLAINT

I. BACKGROUND

Plaintiff

Alexis Maxwell's ("Maxwell") residence was allegedly uninhabitable due to mold, vermin, and lack of heat, and landlord Defendants 650 S Spring Owner LLC ("Spring"), SDBTLA 1 LLC ("SDBTLA 1"), SDBTLA 2 LLC ("SDBTLA 2"), SDBTLA 3 LLC ("SDBTLA 3"), and SDBTLA 4 LLC ("SDBTLA 4") failed to fix it. Maxwell further alleged Defendants threatened to evict Maxwell from her rental unit in retaliation to her complaints and because she is African American. Maxwell sued Defendants for eight causes of action, including breach of implied warranty of habitability.

Spring

filed a cross-complaint against Maxwell for breach of written lease and common count – open book account, alleging Maxwell failed to make timely and complete rent payments over the course of nineteen months.

On

April 13, 2026, Maxwell filed the instant demurrer to Spring's cross-complaint ("CC"). Spring filed an opposition. Maxwell filed a reply brief.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10 states^[1]:

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by

conduct.”

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Maxwell requests the Court sustain the demurrer for all causes of action against Maxwell as the causes of action are not sufficiently pled regarding damages and facts necessary to establish claims for breach of contract and open-book account.

A. Allegations of the CC

The CC alleges on December 17, 2021, Spring’s predecessor-in-interest Vault Lounge, LLC (“Vault”) entered into a rental agreement with Maxwell for the subject apartment. (CC ¶ 8.) Spring acquired title to the apartment building on March 31, 2023, becoming successor-in-interest to existing leases. (CC ¶ 2.)

Maxwell was to pay rent on the first day of each month. (CC ¶ 10.) From October 2023 to April 2025, Maxwell failed to make timely and complete rent payments. (CC ¶ 12.) At the time Maxwell vacated the apartment, Maxwell owed Spring \$28,840.05 in overdue rent, excluding interest. (CC ¶¶ 14-15.)

B. Lump-Sum

Rent / Uncertainty

Maxwell first argues the CC is subject to demurrer as the pleading is uncertain as to the amount allegedly owed by Maxwell to Spring. Pursuant to section 430.010, subdivision (f), pleadings may be subject to demurrer on the basis of uncertainty if they are ambiguous and unintelligible. “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal. App. 5th 677, 695.)

Maxwell argues that because the CC does not allege the month-by-month rent, rental due dates, what (if any) payments were received and applied, whether late fees or utilities are included, the contractual basis for any such add-ons, or how Spring arrived at the alleged balance, the CC is uncertainly pled.

Maxwell first relies upon *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, which is irrelevant to this issue. *Khoury* addresses whether an oral contract is sufficiently pled; it does not address the breakdown of overdue rent as provided in a contract.

Maxwell also relied on *Shook v. Pearson* (1950) 99 Cal.App.2d 348, which is more relevant to the applicable pleading standards. The *Shook* court held special damages must be stated with particularity; the “amount of such damages must be given, and the means of occasioning them must be set forth.” (Id. at 352.) Here, the CC alleges the amount in damages (\$28,840.04) and the means in which they arose—overdue rent from October 2023 to April 2025. The Court also notes breach of contract claims for overdue rent stemming from a lease are general damages, not special. (*Lewis Jorge Construction Management, Inc. v. Pomona Unified School Dist.* (2004) 34 Cal.4th 960.) Therefore, the pleading standards regarding specificity as to

damages should be even lower than those outlined in Shook, which the CC satisfies. The pleadings provide enough information to allow Maxwell to understand the claims made against her and respond accordingly.

C. Breach of Contract

Maxwell next requests the Court sustain the demurrer as to the first cause of action for breach of written lease, as the CC does not sufficiently allege a contract existed between Maxwell and Spring. “To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Maxwell argues that Spring provided no facts showing a valid assignment or transfer of the Maxwell’s lease rights upon Spring acquiring title to the subject building and therefore has not plead the existence of a contract between Maxwell and Spring for Maxwell to pay rent. Maxwell specifically states, “Conclusory labels such as ‘successor-in-interest’ are not assumed true on demurrer,” and cites to two cases in support of this assertion. (Mot., pg. 6 ¶¶ 22-24.) However, neither cited case addresses the issue of utilizing ‘successor-in-interest.’ Neither Blank v. Kirwan (1985) 39 Cal.3d 31 nor Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695 mention the term ‘successor-in-interest’ in any capacity. The only potential connection is that both cases mention that demurrers do not admit all conclusions of fact or law alleged therein.

The Court finds the CC does not plead Spring is a successor-in-interest as merely a conclusion of fact or law. The CC specifies Spring acquired title to the subject apartment building, conveying the existing leases to Spring. (CC ¶ 2.) There are allegations to support the assertion Spring was the successor in interest to Maxwell’s lease, which specified the ‘landlord’ to a lease was any owner of the subject building. (CC, Ex. 1.)

The Court also finds the CC adequately pleads breach of contract as it outlines Maxwell’s breach as starting in October 2023 via failure to pay rent. There are sufficient facts to allow Maxwell to understand the pled cause of action.

D. Open

Book Account

Maxwell finally requests the Court sustain the demurrer as to the cause of action for open book account as it does not sufficiently allege any actual account entries, debits, credits, or transactions from which a balance can be determined. "A book account may furnish the basis for an action on a common count ' . . . when it contains a statement of the debits and credits of the transactions involved completely enough to supply evidence from which it can be reasonably determined what amount is due to the claimant.' " A book account is described as 'open' when the debtor has made some payment on the account, leaving a balance due." (Interstate Group Administrators, Inc. v. Cravens, Dargan & Co. (1985) 174 Cal.App.3d 700, 708.)

Maxwell misinterprets the requirements for a cause of action for open book account. "[T]he most important characteristic of a suit brought to recover a sum owing on a book account is that the amount owed is determined by computing all of the credits and debits entered in the book account." (Ibid.) The pleading does not specifically require all payments and debits be outlined; it just requires the total amount owed, calculated by computing all credits and debits. The pleading sufficiently alleges the computation of nonpayment, based upon an open book account, totaling \$28,840.05.

This cause of action, as well as the entire complaint, is sufficiently pled. The Court overrules the demurrer.

IV. CONCLUSION

Plaintiff Alexis Maxwell's demurrer to the entire Cross-Complaint is OVERRULED.

Spring is ordered to give notice.

DATED:

August 10, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.